

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY-----X
LAWRENCE BOWERS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. MUBBASHA ZAHID,
and P.O. KHURRAM ZUBAIR.

Defendants.

Index No.:

Date purchased:

Plaintiff designates
KINGS County
as the place of Trial.**SUMMONS WITH NOTICE**The basis of the venue is
Place of Occurrence:
Brooklyn, NY-----X
To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
June 24, 2019
Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

Notice: The nature of this action: negligence; personal injuries; assault; battery; excessive force; unlawful detention; false arrest; false imprisonment; violation of civil rights; malicious prosecution. The relief sought is monetary damages: compensatory damages, exemplary damages, attorney fees.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from March 13, 2019 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X Index No.:
LAWRENCE BOWERS,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. MUBBASHA ZAHID,
and P.O. KHURRAM ZUBAIR.

Defendants.

-----X

Plaintiff herein, by his attorneys, Ross and Hill, Esqs, complaining of the above-named defendants, respectfully shows to the Court and allege the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter mentioned, plaintiff **LAWRENCE BOWERS** was and still is a resident of Kings County and the State of New York.

2. At all times hereinafter mentioned, defendant **THE CITY OF NEW YORK** was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, defendant **NEW YORK POLICE DEPARTMENT** is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.

4. At all times hereinafter mentioned, defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department including all

the police officers thereof.

5. That at all times hereinafter mentioned, P.O. Mubbasha Zahid, shield # 3267, was acting within the scope of his employment as a New York Police Department officer.

6. That at all times hereinafter mentioned, P.O. Khurram Zubair, was acting within the scope of his employment as a New York Police Department officer.

7. On March 26, 2019, plaintiff's Notice of Claim was made and served upon the defendant, said service occurring within ninety (90) days of the incident giving rise to this law suit.

8. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

9. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

10. That on March 13, 2019 at approximately 12:05 AM at the corner of Mermaid Avenue and 32nd Street in Brooklyn, New York, plaintiff was a passenger in a motor vehicle.

11. That at said time, P.O. Zahid and P.O. Zubair, without reasonable or probable cause, pulled over the motor vehicle that the plaintiff was in.

12. That said police officers directed plaintiff to exit the motor vehicle.

13. That said police officers lacked probable cause to direct plaintiff to exit the motor vehicle.

14. That said police officers searched the motor vehicle.

15. That said police officers searched the motor vehicle without a warrant, consent, probable cause, or exigent circumstances to do so.

16. That the police officers unlawfully placed handcuffs on plaintiff.

17. That at said time, plaintiff was unlawfully detained and arrested at the scene of the incident.

18. That said police officers lacked probable cause and did not have the warrant necessary to detain and arrest plaintiff.

19. That police officers Zahid and Zubair failed to conduct a full and proper investigation of the facts, circumstances, and evidence.

20. That the police officers falsely arrested the plaintiff.

21. That plaintiff was imprisoned at the 60th precinct.

22. That plaintiff was not read his Miranda Rights.

23. That plaintiff was transported to and imprisoned at Central Booking, where he was never charged.

24. That plaintiff was fingerprinted.

25. That plaintiff was photographed.

26. That plaintiff's eyes were scanned.

27. That plaintiff was not arraigned.

28. That, at approximately 10:00 PM on March 13, 2019, plaintiff was released.

29. That the detainment and imprisonment of plaintiff constituted a false imprisonment.

30. That the incident as aforescribed resulted from the intentional, wanton, and wrongful conduct of the defendants including P.O. Zahid and P.O. Zubair.

31. The incident as aforescribed resulted from the negligence of the defendant, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

32. The false arrest of plaintiff by defendants, its agents, servants and/or employees, caused plaintiff pain, suffering, humiliation and personal injury.

33. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

34. As a result of the foregoing, plaintiff sustained exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-34 hereof with the same force and effect as though fully set forth herein at length.

36. That police officers used excessive and unjustified force, intimidated plaintiff and injured plaintiff.

37. The actions of the officers constituted an assault and battery.

38. As a result of the assault and battery committed by defendants, plaintiff sustained personal injuries.

39. That the incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

40. That P.O. Zahid and P.O. Zubair acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

41. That the assault and battery of plaintiff by defendants, its agents, servants and/or employees, caused plaintiff pain, humiliation, and personal injury.

42. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

43. As a result of the foregoing, plaintiff sustained exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A THIRD CAUSE OF ACTION

44. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-34, 35-43 hereof with the same force and effect as though fully set forth herein at length.

45. In placing plaintiff under arrest, the defendants caused plaintiff to miss a full day of work.

46. As a result both of missing that day of work and of being arrested, plaintiff was fired from his job with the City of New York.

47. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

48. As a result of the foregoing, plaintiff sustained exemplary damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiff demands judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York
June 24, 2019

Yours, etc.,



Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

LAWRENCE BOWERS, being duly sworn, deposes and says:

I am the plaintiff in the within action, have read the foregoing **COMPLAINT** and know the contents thereof; that same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief and as to those matters, I believe it to be true.



LAWRENCE BOWERS

Sworn to before me this
24th day of June, 2019


Notary Public

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY**

LAWRENCE BOWERS

Plaintiff,

-against-

**THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O.
MUBBASHA ZAHID, and P.O. KHURRAM ZUBAIR,**

Defendants.

SUMMONS & COMPLAINT

LAW OFFICES OF ROSS AND HILL, PLLC.

Attorneys for Plaintiff
Office and Post Office Address
16 Court Street, 35th Floor
NEW YORK, New York 11241
Tel (718) 855-2324
Fax (718) 855-4617

To:

**Service of a copy of the within
is hereby admitted.**

Dated:

Attorney(s) for
